



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

February 6, 2020

POLICE COMMISSIONER'S PENALTY DEPARTMENTURE

Re: CCRB Case No. 201810201 regarding Police Officer Christian Cayenne, Tax No. [REDACTED]
(DADS No. 2019-21006)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this incident and disagrees with the penalty regarding Police Officer Cayenne as it relates to the search of the bag. While, the facts regarding the method of the search differ, it is agreed that Police Officer Cayenne had no legal justification for the search. However, it should be noted that Police Officer Cayenne had no prior substantiated CCRBs at the time of this incident.

Therefore, in light of Police Officer Cayenne's discipline history, the Police Commissioner has determined that a lower penalty would be warranted and directs that Police Officer Cayenne receive a Schedule "A" command Discipline for the improper bag search. Additionally, Police Officer Cayenne made a notation of the stop on the blank side of the Activity Log page, which is to be reserved for notes, diagrams, etc., and not in the lined portion of the Activity Log. Thus, the Schedule "A" Command Discipline will include the failure to make proper Activity Log entries.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

Cecil Wade
Deputy Chief
Commanding Officer
Police Commissioner's Office

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